VEHICLE OPTION, USE AND PURCHASE AGREEMENT

2021 Toyota Tacoma TRD Off-Road, Double Cab

This Agreement is made on _____, 2026 (the **"Effective Date"**) between:

Matthew Sharpe, of _____ (**"Owner"**), and

Brandon Long, of _____ (**"Holder"**).

Owner and Holder are each a "Party" and together the "Parties."

Background

Owner owns the Vehicle described in Section 1 and is willing to sell it. Holder wants the use of the Vehicle now and the right, but not the obligation, to buy it later. Rather than a sale today, the Parties have agreed that Holder will pay $7,000.00 now, take possession and use of the Vehicle, and hold an option to complete the purchase at the end of a twelve-month term. Owner keeps legal title throughout that term. This Agreement sets out those terms.

1. The Vehicle

The **"Vehicle"** is:

Year / make / model	2021 Toyota Tacoma TRD Off-Road
Body	Double Cab
VIN	_____
Colorado plate	_____
Odometer at delivery	_____ miles
Color	_____
Keys delivered	_____

Owner represents that Owner holds clear title to the Vehicle, that there is no lien, loan or security interest against it, and that Owner has the right to enter into this Agreement. Any existing lien is disclosed here:

_____

2. The Payment

On the Effective Date, Holder pays Owner **seven thousand dollars ($7,000.00)** (the **"Option Payment"**).

The Option Payment is **not rent** and **not a fee**. It is held against the outcomes in Section 8: depending on which one occurs, it is either credited in full against the purchase price or refunded in full to Holder.

Method of payment: _____ *(record it — cash, check or transfer)*

Owner signs the receipt at Exhibit B on delivery.

3. Title and Ownership

Owner keeps legal title to the Vehicle for the entire Term. The title certificate, the registration and ownership of the Vehicle remain in Owner's name. This Agreement does not transfer ownership and is not a completed sale.

Owner will not sign, endorse or deliver the title to Holder or to anyone else unless and until Holder completes the purchase under Section 8(a).

Holder acknowledges that Holder is not the owner of the Vehicle, holds no ownership interest in it during the Term, and will not represent to any third party that Holder owns it.

Where the title document is kept during the Term — check one:

☐ **Owner holds the title certificate.** It stays in Owner's possession, unsigned, until the purchase completes under Section 8(a).

☐ **An escrow agent holds the title certificate.** The certificate is **unsigned and remains in Owner's name** while held. Owner does not endorse it into escrow. The Parties agree:

1. The escrow agent is _____, whose fee is paid by ☐ Owner ☐ Holder ☐ equally.
2. The agent holds ☐ the title certificate only ☐ the title certificate and the payments.
3. The agent releases the certificate to Holder only on written confirmation from Owner that the full balance under Section 8(a) has cleared.
4. The agent returns the certificate to Owner within _____ days if the Term ends under Section 8(b), or on a default by Holder under Section 12(a), or if the Parties jointly instruct it.
5. If the agent ceases to act for any reason, the certificate is returned to **Owner**, and the Parties shall appoint a replacement by written agreement before it is placed in escrow again.

Owner does not sign or endorse the title at any point before the purchase completes. A signed title in a third party's hands can be filed by whoever holds it, which is not what this Section provides for.

4. Possession and Use

Owner delivers possession of the Vehicle to Holder on the Effective Date. Holder may use the Vehicle for ordinary personal and business driving during the Term.

Holder shall:

1. Hold a valid, unrestricted driver's license at all times while in possession.
2. Operate the Vehicle lawfully and keep it in the condition it was delivered in, ordinary wear and tear excepted.
3. Keep the Vehicle principally garaged at _____ and give Owner written notice before moving it out of Colorado for more than 30 days.

4. Allow Owner to inspect the Vehicle on 48 hours' written notice, at a reasonable time and place, not more than once a month.
5. Tell Owner within 48 hours of any accident, theft, damage, mechanical failure, citation, impoundment or claim involving the Vehicle.

Holder shall **not**:

6. Sell, trade, transfer, assign, pledge, lend, rent or pawn the Vehicle, or offer to.
7. Pledge the Vehicle as collateral or allow any lien, levy or security interest to attach to it. Clearing any such lien is Holder's responsibility, at Holder's cost.
8. Let anyone else drive it, except a licensed and insured driver with Holder's permission for occasional use. No commercial passenger or delivery service, and no rideshare or car-sharing platform, without Owner's prior written consent.
9. Modify, alter, wrap, repaint or remove parts from the Vehicle without Owner's prior written consent. Bolt-on accessories Holder adds at Holder's own cost may be removed by Holder before return, provided the Vehicle is restored to its prior condition.
10. Use the Vehicle for racing, for competition, for towing beyond the manufacturer's rating, or for any unlawful purpose.

5. Registration, Taxes, Tickets and Tolls

1. **Registration — check one:** ☐ the Vehicle stays registered in **Owner's name alone**; ☐ the Vehicle is registered in **both names**, with the two names joined on the Colorado record by ☐ "OR" ☐ "AND". Whichever is chosen, **Section 3 governs the title and is not changed by the registration**. Holder reimburses Owner for any registration or ownership tax falling due during the Term, within 15 days of Owner providing the bill. *"OR" lets either name act alone; "AND" requires both signatures.*
2. Holder is responsible for every parking ticket, moving violation, photo-radar notice, toll, impound fee and red-light citation arising during Holder's possession, whether it is addressed to Owner or to Holder. Holder shall pay it, or reimburse Owner within 15 days, and shall identify Holder as the driver wherever the citation allows it.
3. Holder pays for fuel, cleaning, tires and all other operating costs.
4. If Holder completes the purchase, Holder pays the sales or use tax, the title fee and the registration cost on transfer. Owner is not responsible for those.
5. Once the purchase completes, the Parties shall promptly sign the Colorado title assignment and a bill of sale, and Holder shall apply for title and registration within the period Colorado law allows.

6. Maintenance and Condition

1. Holder shall service the Vehicle on the manufacturer's schedule, at Holder's cost, using a qualified shop, and shall keep the receipts. Holder shall give Owner copies of the service records on request and at the end of the Term.
2. Holder shall repair, at Holder's cost, any damage occurring during the Term beyond ordinary wear and tear — including body damage, glass, interior damage, and mechanical damage caused by neglect or misuse.

3. Ordinary wear and tear means what a reasonable person would expect from twelve (12) months of normal driving. It does not include dents, cracked glass, torn upholstery, unrepaired warning lights, bald tires or missing equipment.
4. Mileage — check one: ☐ the Parties set no mileage cap; ☐ the Parties set a cap of _____ miles for the Term, above which Holder pays Owner _____ per mile at return.
5. At delivery the Parties complete the condition report at **Exhibit A**, with photographs. That report is the baseline for any dispute about return condition **and for Section 6.6**.
6. **Owner's ninety-day mechanical responsibility.** For **ninety (90) days** from the Effective Date, Owner shall pay the cost of repairing a **mechanical** fault that clearly arose from the Vehicle's condition before delivery, on these terms:
    1. **Mechanical only.** This covers the engine, transmission, drivetrain, braking, steering, suspension, cooling and electrical systems. It does not cover cosmetic condition, paint, trim, upholstery, glass, tires, wiper blades, bulbs or any other wear item, and it does not cover routine maintenance.
    2. **Clearly pre-existing.** The fault must be one that the Vehicle already had, or was already developing, at delivery. A fault first arising from Holder's use, from an impact, from neglect, from missed servicing or from a modification is not covered. **Exhibit A is the baseline**; anything recorded there as a known condition is excluded.
    3. **Notice.** Holder shall tell Owner in writing within **seven (7) days** of the fault appearing, and **before** any repair is authorized except one needed to make the Vehicle safe to stop driving. Owner may inspect the Vehicle, and may require a second opinion from a shop Owner chooses and pays for.
    4. **Cap.** Owner's total liability under this Section 6.6 is capped at _____ in aggregate, and Owner is not liable for consequential loss, loss of use, a rental vehicle, towing beyond _____ miles, or any diagnostic charge for a fault that turns out not to be covered.
    5. This Section ends ninety (90) days after the Effective Date and does not revive. It is the only exception to the **as is** delivery in Section 14.1.

7. Term

The **Term** begins on the Effective Date and ends **twelve (12) months** later, on _____, 2027 (the **"Option Deadline"**), unless it ends earlier under Section 12.

The Term may be extended only by a written amendment signed by both Parties.

8. How the Term Ends

One of the following three outcomes will occur. There is no fourth.

(a) Holder completes the purchase

Holder may buy the Vehicle outright by giving Owner written notice **no later than 30 days before the Option Deadline**, and paying the balance on or before the Option Deadline.

Total Purchase Price	_____
Less the Option Payment already paid	($7,000.00)
Balance due at closing	_____

The Total Purchase Price is fixed now, at signing. It does not move with mileage, market value or condition.

On receipt of cleared funds in full, Owner shall sign over the title and deliver a signed bill of sale. Ownership passes at that point and this Agreement ends, except for Section 13, which survives.

Holder may pay the balance early. If Holder does, the purchase closes early on the same terms.

(b) Holder does not complete, and Owner takes the Vehicle back

If Holder does not give the notice required by Section 8(a), or gives notice but does not pay the balance in full by the Option Deadline, then:

1. Holder shall return the Vehicle to Owner at _____ on or before the Option Deadline, in the condition required by Section 6, with all keys, the owner's manual, all equipment and the service records.
2. Owner shall refund the **full $7,000.00 Option Payment** to Holder within _____ days of the Vehicle being returned. Holder is not charged for the use of the Vehicle during the Term.
3. Owner may deduct from that refund only: (i) the documented cost of repairing damage beyond ordinary wear and tear; (ii) any mileage overage under Section 6.4; and (iii) unpaid tickets, tolls, taxes or reimbursements Holder owes under Section 5. Owner shall give Holder an itemized statement, with receipts, for anything deducted.
4. Nothing further is owed by either Party and this Agreement ends, except for Section 10, which survives.

(c) Both Parties agree to extend

The Parties may agree in writing, before the Option Deadline, to extend the Term. The extension must state the new Option Deadline and whether the Total Purchase Price changes. Without a signed extension, outcome (a) or (b) applies.

9. No Sale to Anyone Else During the Term

During the Term, Owner shall not sell, offer to sell, list, trade or transfer the Vehicle to any third party, and shall not grant anyone else an option or interest in it. Holder's position during the Term is exclusive.

If Owner receives an unsolicited offer during the Term, Owner may tell Holder about it, but Owner may not accept it.

10. Right of First Refusal After the Term

This section applies after the Term ends under Section 8(b). It survives the end of this Agreement.

1. For **twelve (12) months** after the Vehicle is returned (the **"ROFR Period"**), if Owner decides to sell the Vehicle and receives a bona fide written offer from a third party that Owner is willing to accept, Owner shall first give Holder written notice of that offer, stating the price and the material terms, with a copy of the offer and the buyer's personal details redacted.
2. Holder then has **seven (7) days** from that notice to tell Owner in writing that Holder will buy the Vehicle at the same price and on the same material terms. If Holder does, Holder shall close within **fourteen (14) days** of giving that notice.
3. **Proof of funds.** With the notice of exercise, Holder shall deliver proof of funds or a written financing commitment for the full price, and pay Owner a deposit of _____. That deposit is credited at closing, is returned in full if Owner fails to close, and is forfeited to Owner if Holder fails to close within the fourteen days for any reason other than Owner's default.
4. If Holder does not respond within seven days, or responds and then fails to close within fourteen days, Owner may sell to the third party on terms no more favorable to that buyer than the terms offered to Holder. If that sale falls through, or Owner later agrees materially better terms with anyone, this right applies again to the new terms.
5. "Same terms" means the same price and the same payment structure. A trade-in allowance or other non-cash consideration in the third-party offer is converted to its cash value for the purpose of Holder's match, and Owner shall state that value in the notice.
6. **Remedy.** If Owner sells or transfers the Vehicle in breach of this Section, the Parties agree that damages alone would not adequately compensate Holder, and Holder may seek specific performance or injunctive relief in addition to any other remedy.
7. This right is personal to Brandon Long. It is not assignable, it does not bind any subsequent owner of the Vehicle, and it expires at the end of the ROFR Period.
8. This right does not apply to a transfer to a member of Owner's immediate family, to an insurance settlement following a total loss, or to a trade-in to a dealer as part of Owner's purchase of a replacement vehicle.

11. Total Loss, Theft and Major Damage

1. Holder bears the risk of loss while in possession.
2. If the Vehicle is stolen and not recovered, or is declared a total loss, any proceeds recovered for it are payable to Owner as titled owner. Owner shall refund the $7,000.00 Option Payment to Holder within _____ days of receiving those proceeds, and this Agreement then ends. Holder's option to purchase ends with it.
3. If the amount Owner actually recovers is less than the Total Purchase Price because of anything Holder did or failed to do, including any breach of the Related Agreement referred to in Section 14.12, Holder shall pay Owner the shortfall.
4. If the Vehicle is damaged but repairable, Holder shall have it repaired at Holder's cost and the Term continues unchanged.

12. Default and Remedies

(a) Default by Holder

Each of the following is a default by Holder:

1. Any breach of the Related Agreement referred to in Section 14.12.
2. Selling, pledging, concealing or attempting to transfer the Vehicle.
3. Failure to return the Vehicle when required under Section 8(b).
4. Driving without a valid license, or use of the Vehicle in a crime.
5. Any other material breach not cured within **ten (10) days** of written notice.

On a default, Owner may, by written notice, end the Term early and require the Vehicle to be returned within **seventy-two (72) hours**. Owner shall still refund the Option Payment under Section 8(b), less the deductions permitted there and less any loss Owner suffers from the default.

Owner may recover the Vehicle **only** by lawful means and without breach of the peace. Owner shall not enter a locked or enclosed space without permission, and shall not use force. If Holder does not surrender the Vehicle, Owner's remedy is a court order.

(b) Default by Owner

Each of the following is a default by Owner:

1. Failing to pay Holder an amount due under Section 8(b) or Section 11 when it falls due.
2. Selling, listing, transferring, pledging or granting any security interest in the Vehicle in breach of Section 9, or encumbering the title during the Term.
3. Failing to sign over the title and deliver a bill of sale after Holder has paid the balance in full under Section 8(a).
4. A representation in Section 1 proving untrue in a material respect.
5. Any other material breach of this Agreement by Owner.

Notice and cure. Before treating any of the above as a default, Holder shall give Owner **written notice** describing it. Owner then has **ten (10) days** from that notice to cure it — except that a failure under Section 12(b)(3) must be cured within **five (5) business days**, because Holder has by then paid in full. A default that is cured within its period is not a default.

Remedies. On an uncured Owner default, Holder may:

1. recover any amount due, together with the reasonable costs of collection;
2. where Holder has paid the balance in full under Section 8(a), seek **specific performance** of the transfer — the Parties agree damages alone would not adequately compensate Holder for the loss of this particular Vehicle; and
3. end the Term by written notice, return the Vehicle, and receive the refund under Section 8(b) without the deductions permitted there, other than deductions for damage beyond ordinary wear and tear.

Sections 12(a) and 12(b) are intended to mirror each other. Neither Party may treat a breach as a default without first giving written notice and allowing the cure period to run.

13. This Agreement Is Personal and Separate from Employment

The Parties acknowledge that they also have a working relationship. That relationship is separate from this Agreement, and:

1. This Agreement is entered into by both Parties personally, not by or on behalf of any employer, company or partnership.
2. Neither Party's employment, role, compensation or standing at work is affected by this Agreement, by either Party exercising any right under it, or by any dispute about it.
3. No amount owed under this Agreement may be set off against wages, commissions, bonuses or expense reimbursements, or collected through payroll, without a separate written authorization signed at the time.
4. If either Party's employment ends, for any reason, this Agreement continues on its own terms and its deadlines do not change.
5. Neither Party shall condition any employment decision on the other's conduct under this Agreement.

14. General

1. **No warranty.** Except for Owner's ninety-day mechanical responsibility in Section 6.6, the Vehicle is delivered **as is**, with no warranty of any kind, express or implied, beyond Owner's representations in Section 1 and any manufacturer's warranty still in force. Holder has had the opportunity to inspect the Vehicle and to have it inspected by a mechanic of Holder's choosing.
2. **Indemnity.** Holder shall indemnify Owner against any claim, damage, fine or cost arising from Holder's possession, use or operation of the Vehicle during the Term, except to the extent it is caused by Owner.
3. **Time is of the essence.** Every deadline in this Agreement is a strict deadline. A Party who does not act within a period stated here loses the right that period attaches to, and no course of dealing extends it.
4. **Notices.** Written notice under this Agreement is effective when sent by email to the addresses below and acknowledged, or when delivered by hand or by certified mail. A text message is not notice.

   Owner: _____

   Holder: _____
5. **Entire agreement.** This document, with its Exhibits and the Related Agreement, is the whole agreement between the Parties about the Vehicle. It replaces every prior conversation, understanding or arrangement about it.
6. **Amendment.** Only a written amendment signed by both Parties changes this Agreement. Nothing said or done informally changes it, however clear the intention.
7. **Governing law.** Colorado law governs. Venue is the state courts of _____ County, Colorado.
8. **Severability.** If any provision is unenforceable, the rest stands.
9. **No waiver.** A Party's delay in enforcing a right does not waive it.
10. **Assignment.** Neither Party may assign this Agreement without the other's written consent. Owner may sell the Vehicle after the Term, subject to Section 10.
11. **Counterparts and electronic signature.** This Agreement may be signed in counterparts and by electronic signature, each of which is an original.

12. **Related Agreement.** The Parties have separately signed a *Vehicle Insurance Agreement* of the same date, which governs the insurance of the Vehicle during the Term (the **"Related Agreement"**). That agreement stands on its own terms, and nothing in this Agreement varies it.
13. **Both Parties have read it.** Each Party has had the opportunity to have this Agreement reviewed by a lawyer of their own choosing, and signs it voluntarily.

Signatures

Each Party signs below, on the date written beside their signature.

OWNER

Signature: _____ Date: _____

Printed name: **Matthew Sharpe**

Driver's license no.: _____ Phone: _____

HOLDER

Signature: _____ Date: _____

Printed name: **Brandon Long**

Driver's license no.: _____ Phone: _____

WITNESS *(optional, recommended)*

Signature: _____ Date: _____

Printed name: _____

NOTARY *(optional)*

State of Colorado, County of _____

Subscribed and sworn to before me on _____, 2026, by Matthew Sharpe and Brandon Long.

_____ My commission expires: _____

Notary Public

EXHIBIT A — VEHICLE CONDITION AT DELIVERY

Completed by both Parties on the Effective Date. Photograph each corner of the Vehicle, the interior, the odometer, and every item of damage noted. Both Parties keep a copy.

Item	Reading / condition
Odometer	_____ miles
Fuel level	_____
Tire tread — front L / front R	_____ / _____
Tire tread — rear L / rear R	_____ / _____
Spare tire and jack present	☐ yes ☐ no
Warning lights on dash	☐ none ☐ _____
Windshield and glass	☐ no chips ☐ _____
Last service date / mileage	_____ / _____
Keys and fobs handed over	_____
Owner's manual	☐ yes ☐ no
Floor mats	☐ yes ☐ no
Bed liner, tonneau, accessories	_____

Existing damage noted at delivery *(scratches, dents, interior wear — be specific)*

_____

_____

_____

_____

_____

Photographs taken: ☐ yes — _____ images, held by both Parties.

Owner initials: _____ Holder initials: _____

EXHIBIT B — RECEIPT FOR THE OPTION PAYMENT

Received from **Brandon Long** the sum of **seven thousand dollars ($7,000.00)** on _____, 2026, as the Option Payment under the Vehicle Option, Use and Purchase Agreement for the 2021 Toyota Tacoma TRD Off-Road, VIN _____.

This payment is credited in full against the Total Purchase Price if the purchase completes, and refunded in full if it does not, on the terms of that Agreement.

Received by: _____ Date: _____

Printed name: **Matthew Sharpe**

EXHIBIT C — VEHICLE CONDITION AT RETURN

Completed whenever the Vehicle is returned — under Section 8(b) or Section 12.

Item	Reading / condition
Date returned	_____
Odometer	_____ miles
Miles driven during the Term	_____
Fuel level	_____
Tire tread — front L / front R	_____ / _____
Tire tread — rear L / rear R	_____ / _____
Warning lights on dash	☐ none ☐ _____
Keys and fobs returned	_____
Service records provided	☐ yes ☐ no
All equipment returned	☐ yes ☐ _____

New damage beyond ordinary wear and tear *(compare against Exhibit A)*

_____

_____

_____

Refund calculation

Option Payment	$7,000.00
Less repair costs (receipts attached)	(_____)
Less mileage overage	(_____)
Less unpaid tickets, tolls, taxes	(_____)
Refund due to Holder	_____

Refund paid on _____ by _____.

Owner signature: _____

Holder signature: _____

EXHIBIT D — EARLY TERMINATION AND RELEASE

Use this sheet only if both Parties agree in writing to end the Term before the Option Deadline. Nothing in the Agreement obliges either Party to agree. Both Parties keep a signed copy.

This relates to the Vehicle Option, Use and Purchase Agreement dated _____, 2026, between **Matthew Sharpe** (Owner) and **Brandon Long** (Holder), for the 2021 Toyota Tacoma TRD Off-Road, VIN _____.

The Parties have **agreed to end the Term early**, by mutual consent, on the terms recorded below. This sheet is the written amendment required by Section 14.6.

Reason recorded, if any:

_____

The Vehicle was returned to Owner on _____ at _____ miles. Exhibit C ☐ was completed ☐ was not completed.

Payment to Holder

The Option Payment, in full	$7,000.00
Documented out-of-pocket costs, itemized and receipted	_____
Any further amount the Parties agreed	_____
Less deductions permitted by Section 8(b)3	(_____)
Total paid to Holder	_____

Paid on _____ by _____.

The right of first refusal in Section 10 — check one:

☐ **Survives.** Section 10 continues to apply for twelve months from the date the Vehicle was returned.

☐ **Ends now.** Holder gives up the right of first refusal, and Owner may sell the Vehicle to anyone, on any terms.

Release. On payment of the total above, each Party releases the other from every claim arising out of the Agreement or the use of the Vehicle during the Term, except any obligation stated above as surviving, Section 13 of the Agreement, and any claim arising from a fact one Party concealed from the other.

Owner signature: _____ Date: _____

Printed name: **Matthew Sharpe**

Holder signature: _____ Date: _____

Printed name: **Brandon Long**